During colonial rule, general territorial laws were enacted (and interpreted by the courts) as the British Raj consolidated its power. However, the Raj chose to preserve religion-specific personal law rather than replace it with uniform law that applied across communities.

The Regulating Act of 1773 – which named Warren Hastings governor general of Bengal – stated that in all suits concerning marriage, inheritance and caste, the law of the Quran would apply to Muslims and that of the Shastras would apply to Hindus. At this stage, personal law was largely not codified into legislation, but was included in religious texts and scriptures. This personal law was administered through the regular courts. The courts were initially assisted by pandits and kazis, but later administered personal law without any external assistance or advice.[2] These decisions during the early days of the Raj turned out to have 'long-lasting implications'.[3]

During the later years of the Raj, some of the previously uncodified personal law was codified and reformed through legislation. Sati was prohibited by the Bengal Sati Regulation in 1829, and remarriage for Hindu windows permitted by the Hindu Widows' Remarriage Act of 1856. Customary laws that applied to Muslims in various regions prevented Muslim women from inheriting property. The Shariat Act of 1937 substituted the Sharia for these customary laws, paving the way for more robust inheritance rights for Muslim women. The Dissolution of Muslim Marriages Act of 1939 enabled Muslim women to divorce their husbands on a wide range of grounds, including if their husbands failed to perform their 'marital obligations' for three years without reasonable cause. Shortly before Independence, bigamy was prohibited among Hindus in some states, including Baroda and Bombay.

By the final days of the British Raj, personal law was therefore a messy concoction of legislation (codified personal law), uncodified personal law that emanated from religious texts and scriptures, and decisions of courts that interpreted and applied both the codified and the uncodified personal law. The question that arose before the Constituent Assembly of India was whether these complex systems of religion-specific codified and uncodified personal law should remain intact, or whether the Constitution should